

# 19STCV27951 19STCV27951

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-14

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Case Number: 19STCV27951 Hearing Date: July 14, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 14, 2026

Case Name: Bushey v. 534 East Foothill LLC, et al.

Case No.: 19STCV27951

Matter: Motion for Attorneys' Fees

Moving Party: Plaintiffs Dan Bret Bushey and Brianna Molden

Responding Party: Defendants 534 East Foothill LLC, Hamid Hamed and Lili Hamed

Notice: OK

Ruling: The Motion is granted in part.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is a wage and hour suit filed on August 7, 2019.

After a trial, on March 23, 2026, the Court entered judgment in favor of Plaintiffs Dan Bret Bushey and Brianna Molden and against 534 East Foothill LLC.

Plaintiffs now seek their attorneys' fees in the amount of \$1,073,205, which consists of 1328.5 hours at attorney hourly rates of \$400, \$500, \$550, \$675, \$750, and \$875, as follows.

Under California Labor Code § 1194(a), a prevailing employee in an action for minimum wage or overtime is entitled to recover reasonable attorneys' fees and costs.

California courts utilize the lodestar method to determine a reasonable fee award, multiplying the number of hours reasonably expended by a reasonable hourly rate (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132). A court may adjust the lodestar figure downward based on factors such as lack of success, inefficiency, or over-litigation (*Gorman v. Tassajara Development Corp.* (2009) 178 Cal.App.4th 44, 92).

The Court, in the exercise of its discretion, reduces the rates of Pairavi, Mohrsaz, and Kayyali to \$600. The rate of Gould is reduced to \$500. The rate of Torres is reduced to \$400.

Next, Defendants correctly note that individual defendants Hamid and Lili Hamedy prevailed via nonsuit, and that Plaintiffs failed to achieve success on their claims for overtime, double-time, and meal/rest break violations. Generally, when a party prevails on some claims or against fewer than all defendants, fees should be apportioned (*Charton v. Harkey* (2016) 247 Cal.App.4th 730). However, apportionment is not required where the claims are inextricably intertwined—meaning they arise out of a common core of facts or related legal theories, making it impracticable to separate the tasks into neat blocks (*Abdallah v. United Savings Bank* (1996) 43 Cal.App.4th 1101, 1111).

Because all of Plaintiffs' claims stemmed from the exact same operative context of their employment as 24/7 on-call on-site resident motel managers, the factual development and core discovery overlappingly applied to both successful and unsuccessful claims. Nonetheless, because Plaintiffs achieved only partial success overall (losing the individual defendants entirely and falling short on several primary statutory claims), a straight award of 100% of the requested hours is unreasonable (*Hensley v. Eckerhart* (1983) 461 U.S. 424). Where specific line-item segregation is impracticable but overall success was partial, the court has broad discretion to apply an across-the-board percentage reduction to the total hours.

The Court finds a 40% global reduction to the submitted hours is appropriate to account for the work exclusively tied to the unsuccessful individual defendants and the unproven overtime/break claims.

The reductions are as follows.

Practitioner

Original Hours

40% Reduced Hours

Approved Rate

Adjusted Total

E. Pairavi

795

477

\$600

\$286,200

J. Mohrsaz

476.5

285.90

\$600

\$171,540

R. Kayyali

4.7

2.82

\$600

\$1,692

C. Gould

0.9

0.54

\$500

\$270

D. Torres

9.5

5.70

\$400

\$2,280

J. Scalia

19.8

11.88

\$400

\$4,752

Paralegal

22.1

13.26

\$175

\$2,320.50

TOTALS

1,328.5

797.10

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\$469,054.50

The Motion is granted in part. The Court awards \$469,054.50 in attorneys' fees.

Moving party to give notice.